

OFFENCE		SECTION <i>Road Safety Act</i>	OFFENCE DATE	DISQUALIFICATION PERIODS		s 50 RSA	
				REQUIREMENT	MINIMUM PERIOD		
Drink / Drug Driving – Road Safety Act 1986							
Applicable for offences on or after 01/01/2009 <u>only</u>							
FIRST OFFENCE	BAC less than 0.05		On or after 01/01/2009 but before 01/10/2014	s.52 applies (zero BAC) - Discretionary		No minimum set*	(1)
				Otherwise	w/o conv <u>AND</u> 26 yo or older – Discretionary	6 months	(1AB)(b)
					in any other case – Mandatory	6 months	(1A)(a)
			On or after 01/10/2014 but before 30/04/2018	Full Licence ¹ – Discretionary		No minimum set*	(1AB)
				Otherwise – Mandatory		3 months	(1A)(a)(i)
	On or after 30/04/2018		Mandatory		3 months	(1A)(a)	
	BAC 0.050 – 0.069	Under 26 yo ²	ss 49(1)(b), (f) or (g)	On or after 01/01/2009	Mandatory	6 months	(1A)(a)
		26 yo or older	ss 49(1)(b), (f) or (g)	On or after 01/01/2009 but before 01/10/2014	Without Conviction – Discretionary	6 months	(1AB)(b)
					Otherwise – Mandatory		(1A)(a)
				On or after 01/10/2014 but before 30/04/2018	Specific Circumstances ³ - Discretionary	6 months	(1AC)
					Otherwise – Mandatory		(1A)(a)
		On or after 30/04/2018		Mandatory	6 months	(1A)(a)	
	BAC 0.07 or above		ss 49(1)(b), (f) or (g)	On or after 01/01/2009	Mandatory	Refer sch 1 (column 2) on page 3.	(1A)(a)
	xPCD		ss 49(1)(bb), (h) or (i)	Before 12/12/2010	Discretionary	No minimum set*	(1E)(a)
				On or after 12/12/2010 but before 30/04/2018	Mandatory	3 months	
				On or after 30/04/2018	Mandatory	6 months	
Combined drink and drug driving		ss 49(1)(bc) or (j)	On or after 01/01/2009	Mandatory	Refer sch 1AB (column 2) on page 3.	(1AD)(a)	
DWI (drugs)		s 49(1)(ba)	On or after 01/01/2009	Mandatory	12 months	(1C)(a)	
DUI; Refuse Offences (alcohol/ driving whilst impaired)		ss 49(1)(a), (c), (d), (e), (ca) or (ea)	On or after 01/01/2009	Mandatory	2 years	(1B)(a) (1D)(a)	
Refuse Offences (xPCDrelated)		s 49(1)(eb)	Before 01/01/2017	Mandatory	6 months	(1DA)(a)	
			On or after 01/01/2017	Mandatory	2 years		

- Continued Overleaf -

* Disqualification period cannot exceed 6 months.

¹ Irrelevant of s 52 RSA application.² At time of offence.³ MUST hold a full licence, not under 26yo at time of offence and not a person s 52 RSA applies (excluding 1A [full D/L driving large vehicle], 1C [full D/L driving taxi], 1D [commercial driving instructor] and 1E [initial three (3) year period for a new motorcycle licence holder]).

Drivers Licence Suspension / Disqualification Periods

Current as at 01/04/2022

	OFFENCE	SECTION <i>Road Safety Act</i>	OFFENCE DATE	DISQUALIFICATION PERIODS		s 50 RSA
				REQUIREMENT	MINIMUM PERIOD	
SUBSEQUENT OFFENCE	Drink / Drug Driving Offences (Continued)					
	BAC less than 0.05	ss 49(1)(b), (f) or (g)	On or after 01/01/2009 but before 01/10/2014	Without Conviction – Discretionary	12 months	(1AB)(a)
				Otherwise – Mandatory		(1A)(b)
					On or after 01/10/2014	Mandatory
	BAC 0.05 or above	ss 49(1)(b), (f) or (g)	On or after 01/01/2009	Mandatory	Refer sch 1 (column 3) on page 3.	(1A)(b)
	xPCD	ss 49(1)(bb), (h) or (i)	Before 12/12/2010	Discretionary	No minimum set ⁴	(1E)(b)
			On or after 12/12/2010 but before 30/04/2018	Mandatory	6 months	
			On or after 30/04/2018	Mandatory	12 months	
	Combined drink and drug driving	ss 49(1)(bc) or (j)	On or after 01/01/2009	Mandatory	Refer sch 1AB (column 3) on page 3.	(1AD)(b)
	DWI (drugs)	s 49(1)(ba)	On or after 01/01/2009	Mandatory	2 years	(1C)(b)
	DUI; Refuse Offences (alcohol/ driving whilst impaired)	ss 49(1)(a), (c), (d), (e), (ca) or (ea)	On or after 01/01/2009	Mandatory	4 years	(1B)(b) (1D)(b)
	Refuse Offences (xPCD related)	s 49(1)(eb)	Before 01/01/2017	Mandatory	12 months	(1DA)(b)
On or after 01/01/2017			Mandatory	4 years		

Frequently Asked Questions (FAQ)**What is a Subsequent Offence for the purpose of licence disqualification under Part 6 of the RSA?**

Pursuant to s 48(2) an offence against s 49(1) [as above] is a subsequent offence, subject to s 50AA provisions (*10 year rule below*), if the accused has been *FOUND GUILTY* or *CONVICTED* of:

- ✓ any offence (other than an accompanying driver offence) against the same or any other of those paragraphs or that section (eg. Guilty xPCD – a prior for xPCA makes the xPCD a subsequent offence);
- ✓ an offence against any corresponding law⁵; or
- ✓ an offence referred to in s 89 *Sentencing Act* where the court made a finding it was committed whilst under the influence of drugs and/or alcohol or such finding is taken to have been made by force of s 89C(3) (ie. refer to the priors – such a finding will be detailed in same)

How do I calculate the '10 year' period for a drink/drug driving subsequent offence?

Pursuant to s 50AA any subsequent offence(s) from which a finding of guilt or conviction is recorded 10 years or more prior to the date of the current offence must be disregarded in determining whether the current offence is a first or subsequent offence for the purpose of licence disqualification. This is the recorded date NOT the date of offence.

eg. *Date of Offence: 01/04/2019* – any prior which has a COURT / INFRINGEMENT CONVICTION result date recorded on or before 01/04/2009 must be disregarded for determining if the 01/04/2019 offence is a first or subsequent offence.

[FAQ Continued overleaf]

⁴ Disqualification period cannot exceed 12 months.

⁵ Pursuant to s 47A(1) RSA this is a law of another State or Territory that is declared corresponding law (ie. drink / drug driving in other states is a prior for down here). See *Government Gazette S 330, 17 September 2013* pp 1-14 (general) and *Government Gazette G-16 19 April 2018* p 741 (specific) for current 'corresponding law' declarations).

SCHEDULE 1 & 1AB				
BAC / Blood Alcohol Reading	Schedule 1 Alcohol <u>ONLY</u>		Schedule 1AB Alcohol & Prescribed Drugs (Combo)	
	1 st Offence (Column 2)	Subsequent Offence (Column 3)	1 st Offence (Column 2)	Subsequent Offence (Column 3)
Less than 0.05	3 months	12 months	12 months	24 months
0.05 or more but less than 0.07	6 months	12 months	12 months	24 months
0.07 or more but less than 0.08	6 months	14 months	12 months	26 months
0.08 or more but less than 0.09	6 months	16 months	12 months	28 months
0.09 or more but less than 0.10	6 months	18 months	12 months	30 months
0.10 or more but less than 0.11	10 months	20 months	16 months	32 months
0.11 or more but less than 0.12	11 months	22 months	17 months	34 months
0.12 or more but less than 0.13	12 months	24 months	18 months	36 months
0.13 or more but less than 0.14	13 months	26 months	19 months	38 months
0.14 or more but less than 0.15	14 months	28 months	20 months	40 months
0.15 or more but less than 0.16	15 months	30 months	21 months	42 months
0.16 or more but less than 0.17	16 months	32 months	22 months	44 months
0.17 or more but less than 0.18	17 months	34 months	23 months	46 months
0.18 or more but less than 0.19	18 months	36 months	24 months	48 months
0.19 or more but less than 0.20	19 months	38 months	25 months	50 months
0.20 or more but less than 0.21	20 months	40 months	26 months	52 months
0.21 or more but less than 0.22	21 months	42 months	27 months	54 months
0.22 or more but less than 0.23	22 months	44 months	28 months	56 months
0.23 or more but less than 0.24	23 months	46 months	29 months	58 months
0.24 or more	24 months	48 months	30 months	60 months

FAQ continued:**Is a Traffic Infringement a subsequent offence?**

Pursuant to s 89A(2) unless a drink-driving or drug-driving infringement is objected to within the prescribed period that infringement is recorded as a CONVICTION 28 days after the date the notice was issued (not date of offence).

When MUST a Court imposed disqualification/suspension period commence?

Other than those imposed under the *Sentencing Act 1991*, a disqualification / suspension MUST commence at the time of the finding of guilt [matters proven]. On the literal reading of the respective provisions (applying principles of statutory interpretation) they cannot be deferred or delayed. However, note that where a provision requires a conviction to impose a mandatory period if that conviction is not recorded (deferred) 'discretion' may apply depending on the specific provision imposing the disqualification period.

	OFFENCE		SECTION	OFFENCE DATE	DISQUALIFICATION PERIODS		RSA Provision	
					REQUIREMENT	MINIMUM PERIOD		
Road Safety Act 1986 (other)								
Applicable for offences on or after 01/01/2009 <u>only</u>								
ANY OFFENCE ⁶	Exceed speed	25 – 34 kph	RR 20 RSA s 65B	On or after 01/01/2009 but before 01/11/2018	Mandatory - Holds a VIC licence - suspension - Otherwise - disqualify	1 month	28 RSA – sch 5	
				On or after 01/11/2018		3 months		
		35 – 44 kph		On or after 01/01/2009		6 months		
		45 kph or more		On or after 01/01/2009		12 months		
		20 – 24 kph in a 110 zone		On or after 01/01/2009 but before 01/11/2018		1 month		
				On or after 01/11/2018		3 months		
	Dangerous driving / speed dangerous		RSA s 64	On or after 01/01/2009	Mandatory (disq)	Involving excessive speed of 45kph or more over the limit	12 months	64(2)
						Otherwise	6 months	
	Deliberately or recklessly entering a level crossing when a train or tram is approaching etc.		RSA s 68B	On or after 01/01/2009	Mandatory	Holds a VIC licence – suspend	3 months	68B(2)(a)
						Otherwise – disqualify		68B(2)(b)
Any other RSA / subordinate legislation offence ⁷		-	On or after 01/01/2009	Discretionary		No minimum set	28	
FIRST OFFENCE	Fail to nominate (Motor Vehicle / Trailer)		RSA s 60(1) / 60A(1)	On or after 01/01/2009 but before 01/03/2022	Convicted – Mandatory		2 years	60 / 60A
					Otherwise – Discretionary		No minimum set	28
						On or after 01/03/2022	Discretionary (including on conviction)	
	Accident – failed obligation(s)		RSA ss 61(1)(a)-(f)	On or after 01/01/2009	Serious Inj / Killed	Convicted – Mandatory	4 years	61(6)
						Otherwise – Mandatory	2 years	
								Otherwise – Discretionary
Evade police (fail to stop on request)		RSA s 64A	On or after 01/01/2009	Mandatory		6 months	64A(3)	
SECOND OFFENCE ⁸	Fail to nominate (Motor Vehicle / Trailer)		RSA s 60(1) / 60A(1)	On or after 01/01/2009 but before 01/03/2022	Convicted – Mandatory		4 years	60 / 60A
					Otherwise – Discretionary		No minimum set	28
						On or after 01/03/2022	Discretionary (including on conviction)	
	Accident – failed obligation(s)		RSA ss 61(1)(a)-(f)	On or after 01/01/2009	Serious Inj / Killed	Convicted – Mandatory	8 years	61(6)
						Otherwise – Mandatory	4 years	
								Otherwise – Discretionary
	Evade police (fail to stop on request)		RSA s 64A	On or after 01/01/2009	Mandatory		12 months	64A(4)

⁶ No additional penalties for 2nd or 3rd offences. Same periods across the board for these specific offences.

⁷ Must be in connection with driving a Motor Vehicle – for application to 'other offences' outside the RSA refer to the *Sentencing Act* provisions.

⁸ **Only** when the 'second offence' is against the SAME section.

Drivers Licence Suspension / Disqualification Periods

Current as at 01/04/2022

OFFENCE	SECTION <i>Crimes Act</i>	OFFENCE DATE	DISQUALIFICATION PERIODS		Sentencing Act Period Provision
			REQUIREMENT	MINIMUM PERIOD	
Sentencing Act 1991 ⁹					
Applicable for offences on or after 01/01/2009 <u>only</u>					
Theft or attempted theft of motor vehicle	ss 74 or 321M	On or after 01/01/2009	Convicted – Mandatory	No minimum set^ (default 3 months)	89(4)
			Otherwise - Discretionary		
Dangerous or negligent driving while pursued by police	s 319AA	On or after 01/01/2009	Mandatory	12 months	89(3)
Any other offence (other than RSA offences)		Before 30/09/2013	Discretionary	No minimum set^ (BUT must be in connection with driving a Motor Vehicle)	RSA s 28
		On or after 30/09/2013	Discretionary	No minimum set^ (default 3 months – no MV connection required)	89A
For the following provisions to apply the listed “serious motor vehicle offence” MUST have arisen out of the driving of a motor vehicle (other than the operating of a vessel):					
Negligently cause serious injury	s 24	On or after 01/01/2009	Mandatory	2 years	89(2)(b)
Intentionally exposing an emergency worker or a custodial officer to risk by driving (includes aggravated version of this offence)	s 317AC-AD	On or after 05/04/2018	Mandatory	2 years	89(2)(b)
Recklessly exposing an emergency worker or a custodial officer to risk by driving (includes aggravated version of this offence)	s 317AE-AF	On or after 05/04/2018	Mandatory	2 years	89(2)(b)
Dangerous Driving causing death or serious injury	s 319	On or after 01/01/2009	Mandatory	18 months	89(2)(a)
For the following provisions to apply the listed “serious motor vehicle offence” MUST have arisen out of the driving of a motor vehicle (other than the operating of a vessel) AND whilst under the influence of either: a) alcohol OR b) alcohol <u>and</u> a drug					
Aggravated Carjacking	s 79A	On or after 12/11/2020	Mandatory	2 years	89(2)(b)
ICSI / RCSI in circumstances of gross violence ICSI / RCSI ICI / RCI Reckless conduct endangering life / serious injury Kidnapping Carjacking	ss 15A-15B ss 16-17 s 18 ss 22-23 s 63A & common law s 79	On or after 12/11/2020	Mandatory	12 months	89(2)(c)

Important note - s 89B Sentencing Act 1991 – the commencement of a *Sentencing Act* imposed disqualification / suspension commences either the day of the order or any later day that the court specifies.

^ Court can disqualify OR suspend under these particular provisions.

⁹ No additional penalties for 2nd or 3rd offences. Same periods across the board.

OFFENCE			SECTION <i>M(DAPC) Act</i>	OFFENCE DATE	DISQUALIFICATION PERIODS		<i>M(DAPC) Act</i> Period Provision
					REQUIREMENT	MINIMUM PERIOD	
<i>Marine (Drug, Alcohol and Pollution Control) Act 1988¹⁰</i>							
Applicable for offences on or after 01/07/2013 <u>only</u>							
Drink / Drug Driving – involving operating a vessel or is the master or pilot of a vessel underway or at anchor							
FIRST OFFENCE	BAC less than 0.05		ss 28(1)(b), (e) or (f)	On or after 01/07/2013	Discretionary	No minimum set ¹¹	28A(1)
	BAC 0.050 – 0.069	Under 26 yo	ss 28(1)(b), (e) or (f)	On or after 01/07/2013	Mandatory	6 months	Sch 1
		26 yo or older	ss 28(1)(b), (e) or (f)	On or after 01/07/2013	Convicted – Mandatory	6 months	Sch 1
					Without Conviction - Discretionary		28A(3)(b)
	BAC 0.07 or more		ss 28(1)(b), (e) or (f)	On or after 01/01/2009	Mandatory	See Sch 1 ¹²	28A(2)
	DWI		s 28(1)(ba)	On or after 01/07/2013	Mandatory	12 months	28A(6)(a)
	DUI; Refuse Offences (alcohol / driving whilst impaired)		ss 28(1)(a), (c) (ca) (cb) (d) or (ea)	On or after 01/07/2013	Mandatory	2 years	28A(5) & (7)
	Refuse Offences (xPCD)		s 28(1)(eb)	On or after 01/07/2013	Mandatory	6 months	28A(8)
xPCD		ss 28(1)(bb), (g) or (h)	On or after 01/07/2013	Mandatory	3 months	28A(9)	
SUBSEQUENT OFFENCE	BAC less than 0.05		ss 28(1)(b), (e) or (f)	On or after 01/07/2013	Without Conviction - Discretionary	12 months	28A(3)(a)
					Otherwise – Mandatory		28A(1)
	BAC 0.05 or more		ss 28(1)(b), (e) or (f)	On or after 01/07/2013	Mandatory	See Sch 1 ¹³	28A(2)
	DWI		s 28(1)(ba)	On or after 01/07/2013	Mandatory	2 years	28A(6)(b)
	DUI; Refuse Offences (alcohol / driving whilst impaired)		ss 28(1)(a), (c) (ca) (cb) (d) or (ea)	On or after 01/07/2013	Mandatory	4 years	28A(5) & (7)
	Refuse Offences (xPCD)		s 28(1)(eb)	On or after 01/07/2013	Mandatory	12 months	28A(8)
	xPCD		ss 28(1)(bb), (g) or (h)	On or after 01/07/2013	Mandatory	6 months	28A(9)

Frequently Asked Questions (FAQ)

What is a Subsequent Offence for the purpose of Part 4 of the *Marine (Drug, Alcohol and Pollution Control) Act*?

Section 28B of the *M(DAPC) Act* states: In determining for the purpose of ss 28A(1), (2) or 28C whether an offence (in this section referred to as **the relevant offence**) is a first offence, any other offence in respect of which a conviction was recorded or a finding of guilt was made 10 years or more before the commission of the relevant offence is to be disregarded if not to do so would make the relevant offence a subsequent offence for the purpose of that provision.

¹⁰ Disqualification applies to licences issued under the *Marine Safety Act* ONLY – not the *RSA*.

¹¹ Disqualification period cannot exceed 6 months.

¹² Refer to Drink Driving periods in Sch 1 (column 2) for Motor Vehicles on page 3 of this aide – they are the same.

¹³ Refer to Drink Driving periods in Sch 1 (column 3) for Motor Vehicles on page 3 of this aide – they are the same.

Drivers Licence Suspension / Disqualification Periods

Current as at 01/04/2022

OFFENCE	SECTION	OFFENCE DATE	DISQUALIFICATION PERIODS		MSA Period Provision
			REQUIREMENT	MINIMUM PERIOD	
<i>Marine Safety Act 2010</i>¹⁴					
Applicable for offences on or after 01/07/2013 <u>only</u>					
Dangerous operation of a recreational vessel or hire and drive vessel	MSA s 87	On or after 01/07/2013	Conviction – Mandatory	6 months	87(5)
			Otherwise – Discretionary	No minimum set	171(1)
Negligently cause serious injury arising out of the operating of a vessel ¹⁵	Crimes Act s 24	On or after 31/12/2017	Mandatory	6 months	171(2)
Dangerous Driving causing death or serious injury	Crimes Act s 319	On or after 01/07/2013	Mandatory	6 months	171(2)
Any Marine Act / subordinate legislation offence	MSA s 171	On or after 01/07/2013	Discretionary	No minimum set	171(1)

¹⁴ Disqualification applies to licenced issued under the *Marine Safety Act* ONLY – not the *RSA*. *Crimes Act* offences must be linked to arising out of the driving / operating of a marine vessel.

¹⁵ Mandatory disqualification only applies for an offence dated on or after 31/12/2017. No mandatory period applied prior to this date.

Licence Eligibility Orders (s 31A Road Safety Act 1986)

Current as at 01/04/2022

Note Drink driving (including drink driving refusals) or combination (drink and drug) driving related relicencing on or after 1 December 2019 will be administered by VicRoads. The Court can only deal with the relicencing of drivers who were disqualified pursuant to the *Sentencing Act* (excluding s 89A [any offence] disqualification) or drug driving (no alcohol but includes drug driving refusals).

OFFENCE	Drug Driving offence ¹⁶		Sentencing Act Disqualifications		RSA Provision
	All drug driving offences but NOT combination (drugs <u>and</u> alcohol) offences (RSA ss 49(1)(a) [involving only a drug], (ba), (bb), (ca), (ea), (eb), (h) and (i))		Serious Motor Vehicle offences ¹⁷ (Disp SA s 89(1)) Dangerous or negligent driving while pursued by police (CA s 319AA - Disq SAs 89(3)) TOMV or attempted TOMV¹⁸ (CA ss 74 and 321M - Disq SAs 89(4))		
Licence Eligibility Order (LEO)	Yes 28 days written notice required		Yes 28 days written notice required		ss 31A & 31B
			For the purpose of <i>Sentencing Act</i> disqualifications: The below requirements ONLY apply if the offence was committed while the person was under the influence of drugs or alcohol or both drugs <u>and</u> alcohol. Otherwise, these requirements are NOT applicable.		s 58C & Reg 36 <i>RS(D)R 2019</i>
First Stage Behaviour Change Program (BCP) – Certificate to be provided to Court	Yes		Yes		ss 58C & 31E(1)(b)
Which BCP is required? ¹⁹	xPCD & 1 st offence	Drug Driver Program	Intensive Drink and Drug Driver Program IF the offence was committed whilst under the influence of alcohol (or drugs <u>and</u> alcohol) a <i>Pre-interlock Removal Program</i> will also need to be completed.		
	Otherwise	Intensive Drink and Drug Driver Program			
Notice from VicRoads indicating which BCP is to be completed to be provided to Court	Yes		Yes		s 31E(1)(a)
Alcohol Interlock Condition (AIC)	No		Offence involved alcohol or <u>both</u> drugs and alcohol	Yes	s 50AAA & Sch 1B
			Otherwise	No	
Alcohol Interlock Condition Removal Order (AICRO)	No (Interlock Removals from 1/12/2019 are administered by VicRoads – this is irrespective of when an interlock [Court or otherwise] was ordered on a licence)				s 50AAAB

Frequently Asked Questions (FAQ)

Does the Behaviour Change Program (BCP) teach standardised drink and exclusion rates?

No – it removed this with a preference on behavioral change to drinking habits in general, focusing on the underlying reasons for a driver's drinking habits and identifying ways to reduce the re-offending.

Can an applicant appeal a decision by VicRoads to the Magistrates' Court under the new administrative scheme?

Yes - in limited circumstances.²⁰ Those circumstances relate to appeals against:

1. a refusal by VicRoads to exempt a driver from requiring an AIC (a decision made under s 50AAAE (transitional provision) – appeal pursuant to s 50AAAF); and
2. a refusal by VicRoads to remove an AIC (s 50AAAB – appeal pursuant to s 50AAAC).

¹⁶ This excludes drug driving offences dealt with by an Infringement Notice disqualification.

¹⁷ *Serious Motor Vehicle Offences* include offences as indicated in the interlock provisions (refer page 9)

¹⁸ If a drivers licence is suspended pursuant to s 89(4) SA it is not disqualified for the purpose of s 31A(2) RSA (ie. a LEO is NOT required).

¹⁹ A BCP is NOT a requirement if the offence to which it applies was committed prior to 30/04/2018 but their licence cancellation for that offence was ordered after 30/04/2018. See s103ZK RSA transitional provision on the introduction of the Behaviour Change Program into the *Road Safety Act 1986*.

²⁰ See page 11 of this guide for more detail on appeals

Alcohol Interlock Condition Provisions²¹

Current as at 01/04/2022

	OFFENCE ²²	SECTION	OFFENCE DATE	ALCOHOL INTERLOCK PROVISIONS		Schedule 1B - Item
				REQUIREMENT	MINIMUM PERIOD	
First Offence	Serious motor vehicle offence [^]	Crimes Act [^] (Disq SA s89(1))	Before 1/10/2014	Discretionary	6 months	15 / 16
			On or after 1/10/2014	Mandatory	6 months	16A
	Dangerous or negligent driving while pursued by police Theft or attempted theft of motor vehicle	Crimes Act ss 74 or 319AA (Disq SA s89(3) or (4))	On or after 30/9/2013 but before 1/12/2019	Discretionary	6 months	20
			On or after 1/12/2019	Mandatory	6 months	20A
Second Offence	Serious motor vehicle offence [^]	Crimes Act [^] (Disq SA s89(1))	Before 13/05/2002	Discretionary	6 months	15
			On or after 13/05/2002 but before 22/12/2004	Mandatory	6 months	17
			On or after 22/12/2004 but before 11/10/2006	Mandatory	3 years	18
			On or after 11/10/2006	Mandatory	4 years	19
	Dangerous or negligent driving while pursued by police Theft or attempted theft of motor vehicle	Crimes Act ss 74 or 319AA (Disq SA s89(3) or (4))	On or after 30/9/2013	Mandatory	4 years	21
Third or Further Offence	Serious motor vehicle offence [^]	Crimes Act [^] (Disq SA s89(1))	Before 13/05/2002	Discretionary	6 months	15
			On or after 13/05/2002 but before 11/10/2006	Mandatory	3 years	17/18
			On or after 11/10/2006	Mandatory	4 years	19
	Dangerous or negligent driving while pursued by police Theft or attempted theft of motor vehicle	Crimes Act ss 74 or 319AA (Disq SA s89(3) or (4))	On or after 30/9/2013	Mandatory	4 years	21

[^] *Serious Motor Vehicle Offences* include as arising out of the driving of a motor vehicle:

Murder or attempted murder (common law);

Manslaughter (CA s 5);

Negligently cause serious injury (CA s 24);

Culpable Driving causing death (CA s 318);

Dangerous Driving causing death or serious injury (CA s 319);

Intentionally exposing an emergency worker or custodial officer to risk by driving (CA s 317AC);

Aggravated offence of intentionally exposing an emergency worker or a custodial officer to risk by driving (CA s 317AD);

Recklessly exposing an emergency worker or a custodial officer to risk by driving (CA s 317AE);

Aggravated offence of recklessly exposing an emergency worker or a custodial officer to risk by driving (CA s 317AF)

ICSI / RCSI in circumstances of gross violence (CA ss 15A-15B);

ICSI / RCSI (CA ss 16-17);

ICI / RCI (CA s 18);

Reckless conduct endangering life / serious injury (CA ss 22-23);

Kidnapping (CA s 63A and common law);

Carjacking (incl aggravated version) (CA s 79-79A);

²¹ When determining whether the relevant offence is a first, second or subsequent offence, apply ss 48(2), (5) and (6) (when new offence is subsequent), s 50AAA(9) (disregard previous drug only offence when imposing interlock) and s 50AA (10 year rule) of the *Road Safety Act 1986* and *CCP v Rigg* (2004) 10 VR 134 (8/11/04) (a 'previous offence' must have a conviction/finding of guilt).

²² Only if there was a finding that the offence was committed while the person was under the influence of alcohol (or a drug and alcohol), which contributed to the offence, as part of the licence order.

Alcohol Interlock Condition (AIC) Appeals – Applications for Court Directions (s 50AAAC & s 50AAAF)

Current as at 01/04/2022

Direction Sought	Alcohol Interlock Condition Removal (s 50AAAC)	Alcohol Interlock Condition Exemption (s 50AAAF)
Background	Pursuant to s 50AAAB VicRoads may refuse to remove an AIC if data on the interlock indicate 1. The person attempted to start a motor vehicle but failed due to the detection of alcohol; or 2. The person failed to provide a breath sample containing no registrable alcohol. If VicRoads determines that the person should not have their AIC removed and refuses their application, the person can seek a review of that decision BUT only on the basis that they were not responsible for the breach(es) on the specified date(s).	Pursuant to s 50AAAE VicRoads, on application, may exempt certain persons being relicenced from requiring an AIC. However, this exemption is <u>ONLY</u> available to persons who have had their licence disqualified for a drink-driving offence and would have faced a <i>discretionary</i> AIC before 1/12/2019 but are now subject to the VicRoads administrative scheme (ie. a mandatory AIC requirement, subject to s 50AAAE). Refer to the table on page 11 to determine if an exemption under s 50AAAE is available to a person. If a s 50AAAE exemption is available and it is refused by VicRoads an appeal can be made to the Magistrates' Court for a Direction.
Application for Direction ²³	Yes 28 days written notice required	Yes 28 days written notice required
Documentation required to accompany application	Yes The application must be supported by data obtained from the interlock relating to the failed attempt(s).	Yes Evidence originally given to VicRoads in support of the application they made under s 50AAAE.
What must the Court consider in determining the application	▪ The Court <u>must</u> be satisfied the relevant period has elapsed that allows the AIC removal (refer to sch 1B - RSA) (s 50AAAC(5)). ▪ The Court <u>must</u> hear any relevant evidence tendered by the Chief Commissioner of Police (s 50AAAC(6)(a)). ▪ The Court need only be <u>satisfied</u> that the applicant was NOT responsible for the failed attempt on the date specified in the interlock report. If it is so, the application should be granted and a direction given to VicRoads as to the Court being satisfied the person was not responsible for the failed attempt on the specified date (s 50AAAC(6)(b)). ▪ The Court cannot order the removal of the AIC, only a direction the applicant was not the person responsible for the 'failed attempt' on a specified date.	▪ The Court <u>must</u> hear any relevant evidence tendered by the Chief Commissioner of Police (s 50AAAF(4)). ▪ Any decision to grant an exemption can <u>only</u> occur if the Court is <u>satisfied</u> it has been provided sufficient evidence to establish that the person is not engaging in hazardous or harmful alcohol use and is not dependent on alcohol (and therefore should not be subject to an AIC) (s 50AAAF(5)(a)). ▪ The application <u>must</u> be refused if, at the time the application is heard, the applicant is no longer a person to whom section 50AAAE applies.²⁴

²³ This is a Magistrates' Court of Victoria form located at www.mcv.vic.gov.au -> form finder

²⁴ For example, a person will become ineligible to make an application under s 50AAAE if they commit another offence which would attract a mandatory AIC; see Explanatory Memorandum, *Transport Legislation Amendment (Better Roads Victoria and Other Amendments) Act 2019* cl 12.

Alcohol Interlock Condition Offences where a s 50AAAE exemption is available

	OFFENCE	SECTION (RSA)	OFFENCE DATE	Mandatory Period subject to s 50AAAE ²⁵		Schedule 1B - Item
FIRST OFFENCE	BAC less than 0.07	ss 49(1)(b), (f) or (g)	On or after 1/10/2014	X		14A
	BAC 0.07 - 0.149	ss 49(1)(b), (f) or (g)	On or after 11/10/2006 but before 1/1/2007	✓		13
			On or after 1/1/2007 but before 1/10/2014	Under 26yo or "P" plates ²⁶	X	14
				Otherwise	✓	14
			On or after 1/10/2014	X		14A
	BAC 0.15 or above; DUI; Refuse offence (alcohol)	ss 49(1)(b), (f) or (g) ss 49(1)(a), (c), (d) or (e)	Before 11/10/2006	✓		1 / 4 / 8 / 9 / 2
			On or after 11/10/2006	X		6 / 11
SECOND OFFENCE	Combined drink and drug driving	ss 49(1)(bc) or (j)	On or after 1/8/2015	X		14B
	BAC below 0.15	ss 49(1)(b), (f) or (g)	On or after 13/05/2002 but before 11/10/2006	X		10 / 12
	BAC 0.15 or above	ss 49(1)(b), (f) or (g)	Before 13/05/2002	✓		8
			On or after 13/05/2002	X		10 / 12
	DUI; Refuse offence (alcohol)	ss 49(1)(a), (c), (d) or (e)	Before 13/05/2002	✓		1
			On or after 13/05/2002	X		2 / 5 / 7
	Combined drink and drug driving (any BAC)	ss 49(1)(bc) or (j)	On or after 1/8/2015	X		14B
THIRD OR FURTHER OFFENCE	BAC 0.15 or above	ss 49(1)(b), (f) or (g)	Before 13/05/2002	✓		8
	BAC - Any level;	ss 49(1)(b), (f) or (g)	On or after 13/05/2002	X		10 / 12
	DUI; Refuse offence (alcohol)	ss 49(1)(a), (c), (d) or (e)	Before 13/05/2002	✓		1
			On or after 13/05/2002	X		3 / 5 / 7
	Combined drink and drug driving (any BAC)	ss 49(1)(bc) or (j)	On or after 1/8/2015	X		14B

Note: any date NOT included in this table (for example, an xPCA where the BAC was less than 0.07 committed pre -1/10/2014) there is NO power under the *Road Safety Act 1986* that allows VicRoads to impose an AIC (discretionary or mandatory) under the administrative scheme.

²⁵ The offences indicated were previously 'discretionary' AIC provisions and, but for the commencement of the new VicRoads administrative scheme, are now mandatory. However, pursuant to s 50AAAE, a person may still apply to VicRoads for an AIC exemption if the date of offence that imposed the disqualification is indicated (as above) as being a "Mandatory Period subject to s 50AAAE".

²⁶ At time of offence.

Update History

DATE FIRST ISSUED	01/12/2019	
DATE UPDATED	SUMMARY OF CHANGE	VERSION
20/01/2020	Footnote 5 – corresponding law gazette reference updated.	1.2
01/05/2020	Correct xSpeed ‘before’ date for 20-24 kph in 110 zone.	1.3
29/10/2020	Including Amendments commencing 12/11/2020 - <i>Road Safety and Other Legislation Amendment Act 2020</i>	1.4
25/11/2020	Minor wording corrections	1.5
26/07/2021	Footnote 19 – BCP ‘untouchable’ provisions explanation	1.6
01/03/2022	Amendments commencing 01/03/2022 – <i>Transport Legislation Miscellaneous Amendments Act 2021</i>	1.7